

The Juvenile Justice (Care and Protection of Children) Act, 2000

Source: <https://indiankanoon.org/doc/148942/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

6080

]

Union of India - Act

The Juvenile Justice (Care and Protection of Children) Act, 2000

UNION OF INDIA

India

The Juvenile Justice (Care and Protection of Children) Act, 2000

Act 56 of 2000

Published on 20 November 1989

Commenced on 20 November 1989

[This is the version of this document from 22 August 2006.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

THE JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) AMENDMENT ACT, 2006 (Act 33 of 2006)

on

22 August 2006

]

[Repealed by

The Juvenile Justice (Care and Protection of Children) Act, 2015 (Act 2 of 2016)

on

31 December 2015

]

The Juvenile Justice (Care and Protection of Children) Act, 2000

(56 of 2000)

045.

Statement of Objects and Reasons.-A review of the working of the juvenile Act, 1986 (

53 of 1986

) would indicate that much greater attention is required to be given to children in conflict with law or those in need of care and protection. The justice system as available for adults is not considered suitable for being applied to a juvenile or the child or any one on their behalf including the police, voluntary organisations, social workers, or parents and guardians, throughout the country. There is also an urgent need for creating adequate infrastructure necessary for the implementation of the proposed legislation with a larger involvement of informal systems specially the family, the voluntary organisations and the community.

2. In this context, the following further proposals have been made-

- (i) to lay down the basic principles for administering justice to a juvenile or the child in the Bill;
- (ii) to make the juvenile system meant for a juvenile or the child more appreciative of the developmental needs in comparison to criminal justice system as applicable to adults;
- (iii) to bring the juvenile law in conformity with the United Convention on the Rights of the Child;
- (iv) to prescribe a uniform age of eighteen years for both boys and girls;
- (v) to ensure speedy disposal of cases by the authorities envisaged under this Bill regarding juvenile or the child within a time limit of four months;
- (vi) to spell out the role of the State as a facilitator rather than doer by involving voluntary organisations and local bodies in the implementation of the proposed legislation;
- (vii) to create special juvenile police units with a humane approach through sensitisation and training of police personnel;
- (viii) to enable increased accessibility to a juvenile or the child by establishing Juvenile Justice Boards and Child Welfare Committees and Homes in each district or group of districts;
- (ix) to minimise the stigma and in keeping with the developmental needs of the juvenile or the child, to separate the Bill into two parts--one for juveniles in conflict with law and the other for the juvenile or the child in need of care and protection;
- (x) to provide for effective provisions and various alternatives for rehabilitation and social reintegration such as adoption, foster care, sponsorship and aftercare of abandoned, destitute, neglected and delinquent juvenile and child.

3. The Bill seeks to repeal and re-enact the juvenile justice Act, 1986 with a view to achieving the above objects.

Amendment Act 33 of 2006-Statement of Objects and Reasons.-The juvenile justice (Care and Protection of Children) Act, 2000 (the juvenile justice Act) was brought into force on 1st April, 2001. The juvenile justice Act was aimed at providing a juvenile justice system for juveniles in conflict with law and children in need of care and protection by adopting a child friendly approach in the adjudication and disposition of matters in the best interests of children and for their rehabilitation keeping in view the developmental needs of the children.

2. In a public interest litigation (Civil Writ Petition No. 3447 of 2001) certain provisions of the Juvenile Justice Act were challenged before the High Court of Delhi. During the course of hearings, the High Court observed that some of the provisions of the juvenile justice Act merited reconsideration. Keeping in view these observations, it was proposed to carry out amendments in sections 32, 33, 56, 57 and 59 of the Juvenile Justice Act. Accordingly, an amendment Bill was introduced in the Lok Sabha on 24-7-2003. Meanwhile, taking cognizance of the said Bill, the High Court of Delhi disposed of the above said Civil Writ Petition on 28-7-2003. The Lok Sabha referred the said Bill to the Parliamentary Standing Committee on Labour and Welfare for examination and report. Before the Standing Committee submitted its report to the Lok Sabha, the Lok Sabha was dissolved and the said Bill lapsed.

3. Thereafter, before re-introducing a fresh amendment Bill the Government considered it necessary to revisit the amendment proposals again along with other suggestions received by the Standing Committee from various experts. In the process, further consultations were held and suggestions/views of all concerned were obtained. Based upon these consultations, it is proposed to make amendments in other provisions of the juvenile justice Act in addition to those contained in the earlier Bill. Modifications proposed in the Bill, inter alia, intend

- (i) to modify the long title of the juvenile justice Act so as to convey a wider scope of rehabilitation of child in need of care and protection or a juvenile in conflict with law under the Act through not only institutional but also non-institutional approach;

- (ii) to clarify that the Juvenile Justice Act shall apply to all cases involving detention or criminal prosecution of juveniles under any other law;
- (iii) to remove doubts regarding the relevant date in determining the juvenility of a person and applicability of the juvenile justice Act;
- (iv) exclusion of the local authority from the provisions authorising them to discharge or transfer a child in need of care and protection or a juvenile from the children's home or special home or for sending a juvenile in conflict with law undergoing imprisonment, to a special home or a fit institution;
- (v) to have a procedure laid down where claim of juvenility is raised before any Court;
- (vi) to have a minimum period of twenty-four hours, excluding the time necessary for the journey from the place where the juvenile in conflict with law was apprehended, within which he should be produced before the Board and a similar provision with regard to production of a child before the Child Welfare Committee;
- (vii) to provide for alternatives to detention in the observation home to achieve the intention of the Juvenile Justice Act;
- (viii) to do away with the association of any police officer from the inquiry process, for the child in need of care and protection as the work is assigned to the Child Welfare Committee and to cover other cases where the child can remain in children/ shelter home after completion of enquiry;
- (ix) to extend the scope of adoption of a child to childless parents and to limit the same under the Juvenile Justice Act to citizens of India only;
- (x) to provide for a flexible period of leave that may be given to child on special occasions like examination, marriage of relatives, death of kith and kin or accident or serious illness of parent or any emergency of the like nature;
- (xi) to ensure the applicability of model rules framed by the Central Government in the States/Union territories who have not made their own rules, till the rules are framed in this regard by the respective States/Union territories.

4. This Bill seeks to achieve the above objectives.

[30th December, 2000]

An Act to consolidate and amend the law relating to juveniles in conflict with law and children in need of care and protection, by providing for proper care, protection and treatment by catering to their development needs, and by adopting a child-friendly approach in the adjudication and disposition of matters in the best interest of children and for their ultimate rehabilitation [and for matters connected therewith or incidental thereto]

[Substituted by Act 33 of 2006, Section 2, for " through various institutions established under this enactment" (w.e.f. 22.8.2006).]

Whereas the Constitution has, in several provisions, including clause (3) of article 15, clauses (e) and (f) of article 39, articles 45

and 47, impose on the State a primary responsibility of ensuring that all the needs of children are met and that their basic human rights are fully protected;

And whereas , the General Assembly of the United Nations has adopted the Convention on the Rights of the Child on the 20th November, 1989;

And whereas , the Convention on the Rights of the Child has prescribed a set of standards to be adhered to by all State parties in securing the best interests of the child;

And whereas , the Convention on the Rights of the Child emphasises social reintegration of child victims, to the extent possible, without resorting to judicial proceedings;

And whereas , the Government of India has ratified the Convention on the 11th December, 1992;

And whereas , it is expedient to re-enact the existing law relating to juveniles bearing in mind the standards prescribed in the Convention on the Rights of the Child, the United Nations Standard Minimum Rules for the Administration of Juvenile Justice, 1985 (the Beijing Rules), the United Nations Rules for the Protection of Juvenile Deprived of their Liberty (1990), and all other relevant international instruments;

Be it enacted by Parliament in the Fifty-first Year of the Republic of India as follows:-

Received the assent of the President on 30.12.2000 and published in Gazette of India, Extraordinary, Part II, S.1 dated 30.12.2000.Enforced with effect from 1.4.2001 vide Notification No. S.O.177(E), dated 28.2.2001.

Chapter I

Preliminary

1.

Short title, extent , [commencement and application]

[Substituted by Act 33 of 2006, Section 3, for " and commencement" (w.e.f. 22.8.2006).]

(1)

This Act may be called The Juvenile Justice (Care and Protection of Children) Act , 2000.

(2)

It extends to the whole of India except the State of Jammu and Kashmir.

(3)

It shall come into force on such [date]

[1st April, 2001, vide notification No. S.O. 177(E), dated 28th February, 2001.]

as the Central Government may, by notification in the Official Gazette, appoint.

(4)

[Notwithstanding anything contained in any other law for the time being in force, the provisions of this Act shall apply to all cases involving detention, prosecution, penalty or sentence of imprisonment of juveniles in conflict with law under such other law.]

[Inserted by Act 33 of 2006, Section 3 (w.e.f. 22.8.2006).]

2.

Definitions

.In this Act, unless the context otherwise requires,

(a)

advisory board means a Central or a State advisory board or a district and city level advisory board as the case may be, constituted under section 62;

(aa)

[adoption means the process through which the adopted child is permanently separated from his biological parents and become the legitimate child of his adoptive parents with all the rights, privileges and responsibilities that are attached to the relationship;]

[Inserted by Act 33 of 2006, Section 4 (w.e.f. 22.8.2006).]

(b)

begging means

(i)

soliciting or receiving alms in a public place or entering into any private premises for the purpose of soliciting or receiving alms, whether under any pretence;

(ii)

exposing or exhibiting with the object of obtaining or extorting alms, any sore, wound, injury, deformity or disease, whether of himself or of any other person or of an animal;

(c)

Board means a Juvenile Justice Board constituted under section 4;

(d)

child in need of care and protection means a child,

(i)

who is found without any home or settled place or abode and without any ostensible means of subsistence,

(ia)

who is found begging, or who is either a street child or a working child,

(ii)

who resides with a person (whether a guardian of the child or not) and such person

(a)

has threatened to kill or injure the child and there is a reasonable likelihood of the threat being carried out, or

(b)

has killed, abused or neglected some other child or children and there is a reasonable likelihood of the child in question being killed, abused or neglected by that person,

(iii)

who is mentally or physically challenged or ill children or children suffering from terminal diseases or incurable diseases having no one to support or look after,

(iv)

who has a parent or guardian and such parent or guardian is unfit or incapacitated to exercise control over the child,

(v)

who does not have parent and no one is willing to take care of or whose parents have abandoned or surrendered him or who is missing and run away child and whose parents cannot be found after reasonable injury,

(vi)

who is being or is likely to be grossly abused, tortured or exploited for the purpose of sexual abuse or illegal acts,

(vii)

who is found vulnerable and is likely to be inducted into drug abuse or trafficking,

(viii)

who is being or is likely to be abused for unconscionable gains,

(ix)

who is victim of any armed conflict, civil commotion or natural calamity;

(e)

children's home means an institution established by a State Government or by voluntary organisation and certified by that Government under section 34;

(f)

Committee means a Child Welfare Committee constituted under section 29;

(g)

competent authority means in relation to children in need of care and protection a Committee and in relation to juveniles in conflict with law a Board;

(h)

fit institution means a governmental or a registered non-governmental organisation or a voluntary organisation prepared to own the responsibility of a child and such organisation is found fit by the [State Government on the recommendation of the competent authority]

[Substituted by Act 33 of 2006, Section 4, for "competent authority" (w.e.f. 22.8.2006).]

;

(i)

fit person means a person, being a social worker or any other person, who is prepared to own the responsibility of a child and is found fit by the competent authority to receive and take care of the child;

(j)

guardian, in relation to a child, means his natural guardian or any other person having the actual charge or control over the child and recognised by the competent authority as a guardian in course of proceedings before that authority;

(k)

juvenile or child means a person who has not completed eighteenth year of age;

(l)

[juvenile in conflict with law means a juvenile who is alleged to have committed an offence and has not completed eighteenth year of age as on the date of commission of such offence;]

[Substituted by Act 33 of 2006, Section 4, for Clause (l)(w.e.f. 22.8.2006).]

[* * *]

[Clause (m) omitted by Act 33 of 2006, Section 4 (w.e.f. 22-8-2006).]

(n)

narcotic drug and psychotropic substance shall have the meanings respectively assigned to them in the Narcotic Drugs and Psychotropic Substances Act, 1985 (

61 of 1985

);

(o)

observation home means a home established by a State Government or by a voluntary organisation and certified by that State Government under section 8 as an observation home for the juvenile in conflict with law;

(p)

offence means an offence punishable under any law for the time being in force;

(q)

place of safety means any place or institution (not being a police lock-up or jail), the person in charge of which is willing temporarily to receive and take care of the juvenile and which, in the opinion of the competent authority, may be a place of safety for the juvenile;

(r)

prescribed means prescribed by rules made under this Act;

(s)

probation officer means an officer appointed by the State Government as a probation officer under the Probation of Offenders Act, 1958 (

20 of 1958

);

(t)

public place shall have the meaning assigned to it in the Immoral Traffic (Prevention) Act, 1956 (

104 of 1956

);

(u)

shelter home means a home or a drop-in-centre set up under section 37;

(v)

special home means an institution established by a State Government or by a voluntary organisation and certified by that Government under section 9;

(w)

special juvenile police unit means a unit of the police force of a State designated for handling of juveniles or children under section 63;

(x)

State Government, in relation to a Union territory, means the Administrator of that Union territory appointed by the President under article 239 of the Constitution;

(y)

all words and expressions used but not defined in this Act and defined in the Code of Criminal Procedure, 1973 (2 of 1974), shall have the meanings respectively assigned to them in that Code.

Prior to its omission, Clause (m) read as under:-

"(m) "local authority" means Panchayat at the village and Zila Parishad at the district level and shall also include a Municipal Committee of Corporation or a Cantonment Board or such other body legally entitled to function as local authority by the Government;"

3.

Continuation of inquiry in respect of juvenile who has ceased to be a juvenile

.Where an inquiry has been initiated against a juvenile in conflict with law or a child in need of care and protection and during the course of such inquiry the juvenile or the child ceases to be such, then, notwithstanding anything contained in this Act or in any other law for the time being in force, the inquiry may be continued and orders may be made in respect of such person as if such person had continued to be a juvenile or a child.

Chapter II

Juvenile In Conflict With Law

4.

Juvenile Justice Board

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the State Government may, [within a period of one year from the date of commencement of the Juvenile Justice (Care and Protection of Children) Amendment Act, 2006, by notification in the Official Gazette, constitute for every district]

[Substituted by Act 33 of 2006, Section 6, for " by notification in the Official Gazette, constitute for a district or a group of districts specified in the notification" (w.e.f. 22.8.2006).]

, one or more Juvenile Justice Boards for exercising the powers and discharging the duties conferred or imposed on such Boards in relation to juveniles in conflict with law under this Act.

(2)

A Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of the first class, as the case may be, and two social workers of whom at least one shall be a woman, forming a Bench and every such Bench shall have the powers conferred by the Code of Criminal Procedure, 1973 (2 of 1974), on a Metropolitan Magistrate or, as the case may be, a Judicial Magistrate of the first class and the Magistrate on the Board shall be designated as the principal Magistrate.

(3)

No Magistrate shall be appointed as a member of the Board unless he has special knowledge or training in child psychology or child welfare and no social worker shall be appointed as a member of the Board unless he has been actively involved in health, education, or welfare activities pertaining to children for atleast seven years.

(4)

The term of office of the members of the Board and the manner in which such member may resign shall be such as may be prescribed.

(5)

The appointment of any member of the Board may be terminated after holding inquiry, by the State Government, if

(i)

he has been found guilty of misuse of power vested under this Act,

(ii)

he has been convicted of an offence involving moral turpitude, and such conviction has not been reversed or he has not been granted full pardon in respect of such offence,

(iii)

he fails to attend the proceedings of the Board for consecutive three months without any valid reason or he fails to attend less than three-fourth of the sittings in a year.

5.

Procedure, etc., in relation to Board

(1)

The Board shall meet at such times and shall observe such rules of procedure in regard to the transaction of business at its meetings, as may be prescribed.

(2)

A child in conflict with law may be produced before an individual member of the Board, when the Board is not sitting.

(3)

A Board may act notwithstanding the absence of any member of the Board, and no order made by the Board shall be invalid by reason only of the absence of any member during any stage of proceedings:

Provided that there shall be at least two members including the principal Magistrate present at the time of final disposal of the case.

(4)

In the event of any difference of opinion among the members of the Board in the interim or final disposition, the opinion of the majority shall prevail, but where there is no such majority, the opinion of the principal Magistrate shall prevail.

6.

Powers of Juvenile Justice Board

(1)

Where a Board has been constituted for any district [* * *]

[words " The words " or a group of districts" omitted by Act 33 of 2006, Section 7 (w.e.f. 22.8.2006).]

, such Board shall, notwithstanding anything contained in any other law for the time being in force but save as otherwise expressly provided in this Act, have power to deal exclusively with all proceedings under this Act relating to juvenile in conflict with law.

(2)

The powers conferred on the Board by or under this Act may also be exercised by the High Court and the Court of Session, when the proceeding comes before them in appeal, revision or otherwise.

7.

Procedure to be followed by a Magistrate not empowered under the Act

(1)

When any Magistrate not empowered to exercise the powers of a Board under this Act is of the opinion that a person brought before him under any of the provisions of this Act (other than for the purpose of giving evidence), is a juvenile or the child, he shall without any delay record such opinion and forward the juvenile or the child and the record of the proceeding to the competent authority having jurisdiction over the proceeding.

(2)

The competent authority to which the proceeding is forwarded under sub-section (1) shall hold the inquiry as if the juvenile or the child had originally been brought before it.

7A.

[Procedure to be followed when claim of juvenility is raised before any Court.

[Inserted by Act 33 of 2006, Section 8 (w.e.f. 22.8.2006).]

(1)

Whenever a claim of juvenility is raised before any Court or a Court is of the opinion that an accused person was a juvenile on the date of commission of the offence, the Court shall make an inquiry, take such evidence as may be necessary (but not an affidavit) so as to determine the age of such person, and shall record a finding whether the person is a juvenile or a child or not, stating his age as nearly as may be:

Provided that a claim of juvenility may be raised before any Court and it shall be recognised at any stage, even after final disposal of the case, and such claim shall be determined in terms of the provisions contained in this Act and the rules made thereunder, even if the juvenile has ceased to be so on or before the date of commencement of this Act.

(2)

If the Court finds a person to be a juvenile on the date of commission of the offence under sub-section (1), it shall forward the juvenile to the Board for passing appropriate order, and the sentence, if any, passed by a Court shall be deemed to have no effect.]

8.

Observation homes

(1)

Any State Government may establish and maintain either by itself or under an agreement with voluntary organisations, observation homes in every district or a group of districts, as may be required for the temporary reception of any juvenile in conflict with law during the pendency of any inquiry regarding them under this Act.

(2)

Where the State Government is of opinion that any institution other than a home established or maintained under sub-section (1), is fit for the temporary reception of juvenile in conflict with law during the pendency of any inquiry regarding them under this Act, it may certify such institution as an observation home for the purposes of this Act.

(3)

The State Government may, by rules made under this Act, provide for the management of observation homes, including the standards and various types of services to be provided by them for rehabilitation and social integration of a juvenile, and the circumstances under which, and the manner in which, the certification of an observation home may be granted or withdrawn.

(4)

Every juvenile who is not placed under the charge of parent or guardian and is sent to an observation home shall be initially kept in a reception unit of the observation home for preliminary inquiries, care and classification for juveniles according to his age group, such as seven to twelve years, twelve to sixteen years and sixteen to eighteen years, giving due considerations to physical and mental status and degree of the offence committed, for further induction into observation home.

9.

Special homes

(1)

Any State Government may establish and maintain either by itself or under an agreement with voluntary organisations, special homes in every district or a group of districts, as may be required for reception and rehabilitation of juvenile in conflict with law under this Act.

(2)

Where the State Government is of opinion that any institution other than a home established or maintained under sub-section (1), is fit for the reception of juvenile in conflict with law to be sent there under this Act, it may certify such institution as a special home for the purposes of this Act.

(3)

The State Government may, by rules made under this Act, provide for the management of special homes, including the standards and various types of services to be provided by them which are necessary for re-socialisation of a juvenile, and the circumstances under which, and the manner in which, the certification of a special home may be granted or withdrawn.

(4)

The rules made under sub-section (3) may also provide for the classification and separation of juvenile in conflict with law on the basis of age and the nature of offences committed by them and his mental and physical status.

10.

Apprehension of juvenile in conflict with law

[(1) As soon as a juvenile in conflict with law is apprehended by police, he shall be placed under the charge of the special juvenile police unit or the designated police officer, who shall produce the juvenile before the Board without any loss of time but within a period of twenty-four hours of his apprehension excluding the time necessary for the journey, from the place where the juvenile was apprehended, to the Board:

Provided that in no case, a juvenile in conflict with law shall be placed in a police lockup or lodged in a jail.]

[Sub-Section (1) substituted by Act 33 of 2006, Section 9, (w.e.f. 22-8-2006).]

(2)

The State Government may make rules consistent with this Act,

(i)

to provide for persons through whom (including registered voluntary organisations) any juvenile in conflict with law may be produced before the Board;

(ii)

to provide the manner in which such juvenile may be sent to an observation home.

Prior to its substitution, sub-Section (1) read as under:-

"(1) As soon as a juvenile in conflict with law is apprehended by police, he shall be placed under the charge of the special juvenile police unit or the designated police officer who shall immediately report the matter to a member of the Board."

11.

Control of custodian over juvenile

.Any person in whose charge a juvenile is placed in pursuance of this Act shall, while the order is in force have the control over the juvenile as he would have if he were his parents, and shall be responsible for his maintenance, and the juvenile shall continue in his charge for the period stated by competent authority, notwithstanding that he is claimed by his parents or any other person.

12.

Bail of juvenile

(1)

When any person accused of a bailable or non-bailable offence, and apparently a juvenile, is arrested or detained or appears or is brought before a Board, such person shall, notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974) or in any other law for the time being in force, be released on bail with or without surety [or placed under the supervision of a Probation Officer or under the care of any fit institution or fit person]

[Inserted by Act 33 of 2006, Section 10 (w.e.f. 22.8.2006).]

but he shall not be so released if there appear reasonable grounds for believing that the release is likely to bring him into association with any known criminal or expose him to moral, physical or psychological danger or that his release would defeat the ends of justice.

(2)

When such person having been arrested is not released on bail under sub-section (1) by the officer incharge of the police station, such officer shall cause him to be kept only in an observation home in the prescribed manner until he can

be brought before a Board.

(3)

When such person is not released on bail under sub-section (1) by the Board it shall, instead of committing him to prison, make an order sending him to an observation home or a place of safety for such period during the pendency of the inquiry regarding him as may be specified in the order.

13.

Information to parent, guardian or probation officer

.Where a juvenile is arrested, the officer incharge of the police station or the special juvenile police unit to which the juvenile is brought shall, as soon as may be after the arrest, inform

(a)

the parent or guardian of the juvenile, if he can be found of such arrest and direct him to be present at the Board before which the juvenile will appear;

and

(b)

the probation officer of such arrest to enable him to obtain information regarding the antecedents and family background of the juvenile and other material circumstances likely to be of assistance to the Board for making the inquiry.

14.

Inquiry by Board regarding juvenile

.[(1)]

[Section 14 renumbered as sub-Section (2) inserted by Act 33 of 2006, Section 11 (w.e.f. 22.8.2006).]

Where a juvenile having been charged with the offence is produced before a Board, the Board shall hold the inquiry in accordance with the provisions of this Act and may make such order in relation to the juvenile as it deems fit:

Provided that an inquiry under this section shall be completed within a period of four months from the date of its commencement, unless the period is extended by the Board having regard to the circumstances of the case and in special cases after recording the reasons in writing for such extension.

(2)

[The Chief Judicial Magistrate or the Chief Metropolitan Magistrate shall review the pendency of cases of the Board at every six months, and shall direct the Board to increase the frequency of its sittings or may cause the constitution of additional Boards.]

[Section 14 renumbered as sub-Section (2) inserted by Act 33 of 2006, Section 11 (w.e.f. 22.8.2006).]

15.

Order that may be passed regarding juvenile

(1)

Where a Board is satisfied on inquiry that a juvenile has committed an offence, then, notwithstanding anything to the contrary contained in any other law for the time being in force, the Board may, if it so thinks fit,

(a)

allow the juvenile to go home after advice or admonition following appropriate inquiry against and counselling to the parent or the guardian and the juvenile;

(b)

direct the juvenile to participate in group counselling and similar activities;

(c)

order the juvenile to perform community service;

(d)

order the parent of the juvenile or the juvenile himself to pay a fine, if he is over fourteen years of age and earns money;

(e)

direct the juvenile to be released on probation of good conduct and placed under the care of any parent, guardian or other fit person, on such parent, guardian or other fit person executing a bond, with or without surety, as the Board may require, for the good behaviour and well-being of the juvenile for any period not exceeding three years;

(f)

direct the juvenile to be released on probation of good conduct and placed under the care of any fit institution for the good behaviour and well-being of the juvenile for any period not exceeding three years;

(g)
[make an order directing the juvenile to be sent to a special home for a period of three years:
[Substituted by Act 33 of 2006, Section 12, for Clause (g) (w.e.f. 22-8-2006).</p>]

Provided that the Board may, if it is satisfied that having regard to the nature of the offence and the circumstances of the case, it is expedient so to do, for reasons to be recorded, reduce the period of stay to such period as it thinks fit.]

(2)
The Board shall obtain the social investigation report on juvenile either through a probation officer or a recognised voluntary organisation or otherwise, and shall take into consideration the findings of such report before passing an order.

(3)
Where an order under clause (d), clause (e) or clause (f) of sub-section (1) is made, the Board may, if it is of opinion that in the interests of the juvenile and of the public, it is expedient so to do, in addition make an order that the juvenile in conflict with law shall remain under the supervision of a probation officer named in the order during such period, not exceeding three years as may be specified therein, and may in such supervision order impose such conditions as it deems necessary for the due supervision of the juvenile in conflict with law:

Provided that if at any time afterwards it appears to the Board on receiving a report from the probation officer or otherwise, that the juvenile in conflict with law has not been of good behaviour during the period of supervision or that the fit institution under whose care the juvenile was placed is no longer able or willing to ensure the good behaviour and well-being of the juvenile it may, after making such inquiry as it deems fit, order the juvenile in conflict with law to be sent to a special home.

(4)
The Board shall while making a supervision order under sub-section (3), explain to the juvenile and the parent, guardian or other fit person or fit institution, as the case may be under whose care the juvenile has been placed, the terms and conditions of the order and shall forthwith furnish one copy of the supervision order to the juvenile, the parent, guardian or other fit person or fit institution, as the case may be, the sureties, if any, and the probation officer.

Prior to its substitution, Clause (g) read as under:-

(g) make an order directing the juvenile to be sent to a special home,-

(i) in the case of juvenile, over seventeen years but less than eighteen years of age for a period of not less than two years;

(ii) in case of any other juvenile for the period until he ceases to be a juvenile:

Provided that the Board may, if it is satisfied that having regard to the nature of the offence and the circumstances of the case it is expedient so to do, for reasons to be recorded, reduce the period of stay to such period as it thinks fit."

16.

Order that may not be passed against juvenile

(1)
Notwithstanding anything to the contrary contained in any other law for the time being in force, no juvenile in conflict with law shall be sentenced to death [or imprisonment for any term which may extend to imprisonment for life]

[Substituted by Act 33 of 2006, Section 13, for " or life imprisonment" (w.e.f. 22.8.2006).]

, or committed to prison in default of payment of fine or in default of furnishing security:

Provided that where a juvenile who has attained the age of sixteen years has committed an offence and the Board is satisfied that the offence committed is so serious in nature or that his conduct and behaviour have been such that it would not be in his interest or in the interest of other juvenile in a special home to send him to such special home and that none of the other measures provided under this Act is suitable or sufficient, the Board may order the juvenile in conflict with law to be kept in such place of safety and in such manner as it thinks fit and shall report the case for the order of the State Government.

(2)
On receipt of a report from a Board under sub-section (1), the State Government may make such arrangement in respect of the juvenile as it deems proper and may order such juvenile to be kept under protective custody at such place and on such conditions as it thinks fit:

[Provided that the period of detention so ordered shall not exceed in any case the maximum period provided under section 15 of this Act.]

[Substituted by Act 33 of 2006, Section 13, for the proviso (w.e.f. 22.8.2006).]

Prior to its substitution, the proviso read as under:-

Provided that the period of detention so ordered shall not exceed the maximum period of imprisonment to which the juvenile could have been sentenced for the offence committed.

17.

Proceeding under Chapter VIII of the Code of Criminal Procedure not competent against juvenile

.Notwithstanding anything to the contrary contained in the Code of Criminal Procedure, 1973 (2 of 1974) no proceeding shall be instituted and no order shall be passed against the juvenile under Chapter VIII of the said Code.

18.

No joint proceeding of juvenile and person not a juvenile

(1)

Notwithstanding anything contained in section 223

of the Code of Criminal Procedure, 1973 (2 of 1974) or in any other law for the time being in force, no juvenile shall be charged with or tried for any offence together with a person who is not a juvenile.

(2)

If a juvenile is accused of an offence for which under section 223 of the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force, such juvenile and any person who is not a juvenile would, but for the prohibition contained in sub-section (1), have been charged and tried together, the Board taking cognizance of that offence shall direct separate trials of the juvenile and the other person.

19.

Removal of disqualification attaching to conviction

(1)

Notwithstanding anything contained in any other law, a juvenile who has committed an offence and has been dealt with under the provisions of this Act shall not suffer disqualification, if any, attaching to a conviction of an offence under such law.

(2)

The Board shall make an order directing that the relevant records of such conviction shall be removed after the expiry of the period of appeal or a reasonable period as prescribed under the rules, as the case may be.

20.

Special provision in respect of pending cases

.Notwithstanding anything contained in this Act, all proceedings in respect of a juvenile pending in any Court in any area on the date on which this Act comes into force in that area, shall be continued in that Court as if this Act had not been passed and if the Court finds that the juvenile has committed an offence, it shall record such finding and instead of passing any sentence in respect of the juvenile, forward the juvenile to the Board which shall pass orders in respect of that juvenile in accordance with the provisions of this Act as if it had been satisfied on inquiry under this Act that a juvenile has committed the offence:

[Provided that the Board may, for any adequate and special reason to be mentioned in the order, review the case and pass appropriate order in the interest of such juvenile.

Explanation. In all pending cases including trial, revision, appeal or any other criminal proceedings in respect of a juvenile in conflict with law, in any Court, the determination of juvenility of such a juvenile shall be in terms of clause (l) of section 2, even if the juvenile ceases to be so on or before the date of commencement of this Act and the provisions of this Act shall apply as if the said provisions had been in force, for all purposes and at all material times when the alleged offence was committed.]

[Inserted by Act 33 of 2006, Section 14 (w.e.f. 22.8.2006).]

21.

[Prohibition of publication of name, etc., of juvenile in conflict with law or child in need of care and protection involved in any proceeding under the Act

[Substituted by Act 33 of 2006, Section 15, for Section 21 (w.e.f. 22-8-2006).]

(1)

No report in any newspaper, magazine, news-sheet or visual media of any inquiry regarding a juvenile in conflict with law or a child in need of care and protection under this Act shall disclose the name, address or school or any other particulars calculated to lead to the identification of the juvenile or child nor shall any picture of any such juvenile or child

be published:

Provided that for reasons to be recorded in writing, the authority holding the inquiry may permit such disclosure, if in its opinion such disclosure is in the interest of the juvenile or the child.

(2)

Any person who contravenes the provisions of sub-section (1), shall be liable to a penalty which may extend to twenty-five thousand rupees.]

Prior to its substitution, Section 21 read as under:-

"21. Prohibition of publication of name, etc. of juvenile involved in any proceeding under the Act.-(1) No report in any newspaper, magazine, news-sheet or visual media of any inquiry regarding a juvenile in conflict with law under this Act shall disclose the name, address or school or any other particulars calculated to lead to the identification of the juvenile nor shall any picture of any such juvenile be published:

Provided that for reasons to be recorded in writing the authority holding the inquiry may permit such disclosure, if in its opinion such disclosure is in the interest of the juvenile.

(2) Any person contravening the provisions of sub section (1) shall be punishable with fine, which may extend to one thousand rupees.

22.

Provision in respect of escaped juvenile

.Notwithstanding anything to the contrary contained in any other law for the time being in force, any police officer may take charge without warrant of a juvenile in conflict with law who has escaped from a special home or an observation home or from the care of a person under whom he was placed under this Act, and shall be sent back to the special home or the observation home or that person, as the case may be; and no proceeding shall be instituted in respect of the juvenile by reason of such escape, but the special home, or the observation home or the person may, after giving the information to the Board which passed the order in respect of the juvenile, take such steps in respect of the juvenile as may be deemed necessary under the provisions of this Act.

23.

Punishment for cruelty to juvenile or child

.Whoever, having the actual charge of or control over, a juvenile or the child, assaults, abandons, exposes or wilfully neglects the juvenile or causes or procures him to be assaulted, abandoned, exposed or neglected in a manner likely to cause such juvenile or the child unnecessary mental or physical suffering shall be punishable with imprisonment for a term which may extend to six months, or fine, or with both.

24.

Employment of juvenile or child for begging

(1)

Whoever, employs or uses any juvenile or the child for the purpose or causes any juvenile to beg shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine.

(2)

Whoever, having the actual charge of, or control over, a juvenile or the child abets the commission of the offence punishable under sub-section (1), shall be punishable with imprisonment for a term which may extend to one year and shall also be liable to fine.

25.

Penalty for giving intoxicating liquor or narcotic drug or psychotropic substance to juvenile or child

.Whoever gives, or causes to be given, to any juvenile or the child any intoxicating liquor in a public place or any narcotic drug or psychotropic substance except upon the order of duly qualified medical practitioner or in case of sickness shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine.

26.

Exploitation of juvenile or child employee

.Whoever ostensibly procures a juvenile or the child for the purpose of any hazardous employment keeps him in bondage and withholds his earnings or uses such earning for his own purposes shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine.

27.

Special offences

.The offences punishable under sections 23, 24, 25 and 26 shall be cognisable.

28.

Alternative punishment

.Where an act or omission constitute an offence punishable under this Act and also under any other Central or State Act, then, notwithstanding anything contained in any law for the time being in force, the offender found guilty of such offences shall be liable to punishment only under such Act as provides for punishment which is greater in degree.

Chapter III

Child In Need Of Care And Protection

29.

Child Welfare Committee

(1)

The State Government may, [within a period of one year from the date of commencement of the Juvenile Justice (Care and Protection of Children) Amendment Act, 2006, by notification in the Official Gazette, constitute for every district]
[Substituted by Act 33 of 2006, Section 16, for " by notification in Official Gazette, constitute for every district or group of districts, specified in the notification" (w.e.f. 22.8.2006).]

, one or more Child Welfare Committees for exercising the powers and discharge the duties conferred on such Committees in relation to child in need of care and protection under this Act.

(2)

The Committee shall consist of a Chairperson and four other members as the State Government may think fit to appoint, of whom at least one shall be a woman and another, an expert on matters concerning children.

(3)

The qualifications of the Chairperson and the members, and the tenure for which they may be appointed shall be such as may be prescribed.

(4)

The appointment of any member of the Committee may be terminated, after holding inquiry, by the State Government, if

(i)

he has been found guilty of misuse of power vested under this Act;

(ii)

he has been convicted of an offence involving moral turpitude, and such conviction has not been reversed or he has not been granted full pardon in respect of such offence;

(iii)

he fails to attend the proceedings of the Committee for consecutive three months without any valid reason or he fails to attend less than three-fourth of the sittings in a year.

(5)

The Committee shall function as a Bench of Magistrates and shall have the powers conferred by the Code of Criminal Procedure, 1973 (2 of 1974) on a Metropolitan Magistrate or, as the case may be, a Judicial Magistrate of the first class.

30.

Procedure, etc., in relation to Committee

(1)

The Committee shall meet at such times and shall observe such rules of procedure in regard to the transaction of business at its meetings, as may be prescribed.

(2)

A child in need of care and protection may be produced before an individual member for being placed in safe custody or otherwise when the Committee is not in session.

(3)

In the event of any difference of opinion among the members of the Committee at the time of any interim decision, the opinion of the majority shall prevail but where there is no such majority the opinion of the Chairperson shall prevail.

(4)

Subject to the provisions of sub-section (1), the Committee may act, notwithstanding the absence of any member of the Committee, and no order made by the Committee shall be invalid by reason only of the absence of any member during any stage of the proceeding.

31.

Powers of Committee

(1)

The Committee shall have the final authority to dispose of cases for the care, protection, treatment, development and rehabilitation of the children as well as to provide for their basic needs and protection of human rights.

(2)

Where a Committee has been constituted for any area, such Committee shall, notwithstanding anything contained in any other law for the time being in force but save as otherwise expressly provided in this Act, have the power to deal exclusively with all proceedings under this Act relating to children in need of care and protection.

32.

Production before Committee

(1)

Any child in need of care and protection may be produced before the Committee by one of the following persons

(i)

any police officer or special juvenile police unit or a designated police officer;

(ii)

any public servant;

(iii)

child line, a registered voluntary organisation or by such other voluntary organisation or an agency as may be recognised by the State Government;

(iv)

any social worker or a public spirited citizen [* * *]

[The words " authorised by the State Government" omitted by Act 33 of 2006, Section 17 (w.e.f. 22.8.2006).]

; or

(v)

by the child himself:

[Provided that the child shall be produced before the Committee without any loss of time but within a period of twenty-four hours excluding the time necessary for the journey.]

[Inserted by Act 33 of 2006, Section 17 (w.e.f. 22.8.2006).]

(2)

The State Government may make rules consistent with this Act to provide for the manner of making the report [* * *]

[The words " to the police and" omitted by Act 33 of 2006, Section 17 (w.e.f. 22.8.2006).]

to the Committee and the manner of sending and entrusting the child to children's home pending the inquiry.

33.

Inquiry

(1)

On receipt of a report under section 32, the Committee [* * *]

[The words " or any police officer or special juvenile police unit or the designated police officer" omitted by Act 33 of 2006, Section 18 (w.e.f. 22.8.2006).]

shall hold an inquiry in the prescribed manner and the Committee, on its own or on the report from any person or agency as mentioned in sub-section (1) of section 32, may pass an order to send the child to the children's home for speedy inquiry by a social worker or child welfare officer.

(2)

The inquiry under this section shall be completed within four months of the receipt of the order or within such shorter period as may be fixed by the Committee:

Provided that the time for the submission of the inquiry report may be extended by such period as the Committee may, having regard to the circumstances and for the reasons recorded in writing, determine.

(3)

[The State Government shall review the pendency of cases of the Committee at every six months, and shall direct the Committee to increase the frequency of its sittings or may cause the constitution of additional Committees.

(4)

After the completion of the inquiry, if, the Committee is of the opinion that the said child has no family or ostensible support or is in continued need of care and protection, it may allow the child to remain in the children's home or shelter home till suitable rehabilitation is found for him or till he attains the age of eighteen years.]

[Substituted by Act 33 of 2006, Section 18, for sub-Section (3) (w.e.f. 22-8-2006).]

Prior to its substitution, sub-Section (3) read as under:-

"(3) After the completion of the inquiry if the Committee is of the opinion that the said child has no family or ostensible support, it may allow the child to remain in the children's home or shelter home till suitable rehabilitation is found for him or till he attains the age of eighteen years."

34.

Children's homes

(1)

The State Government may establish and maintain either by itself or in association with the voluntary organisations, children's homes, in every district or group or districts, as the case may be, for the reception of child in need of care and protection during the pendency of any inquiry and subsequently for their care, treatment, education, training, development and rehabilitation.

(2)

The State Government may, by rules made under this Act, provide for the management of children's homes including the standards and the nature of services to be provided by them, and the circumstances under which, and the manner in which, the certification of a children's home or recognition to a voluntary organisation may be granted or withdrawn.

(3)

[Without prejudice to anything contained in any other law for the time being in force, all institutions, whether State Government run or those run by voluntary organisations for children in need of care and protection shall, within a period of six months from the date of commencement of the Juvenile Justice (Care and Protection of Children) Amendment Act, 2006, be registered under this Act in such manner as may be prescribed.]

[Inserted by Act 33 of 2006, Section 19 (w.e.f. 22.8.2006).]

35.

Inspection

(1)

The State Government may appoint inspection committees for the children's homes (hereinafter referred to as the inspection committees) for the State, a district and city, as the case may be, for such period and for such purposes as may be prescribed.

(2)

The inspection committee of a State, district or of a city shall consist of such number of representatives from the State Government, [* * *]

[The words " local authority" omitted by Act 33 of 2006, Section 5 (w.e.f. 22.8.2006).]

, Committee, voluntary organisations and such other medical experts and social workers as may be prescribed.

36.

Social auditing

.The Central Government or State Government may monitor and evaluate the functioning of the Children's homes at such period and through such persons and institutions as may be specified by that Government.

37.

Shelter homes

(1)

The State Government may recognise, reputed and capable voluntary organisations and provide them assistance to set up and administer as many shelter homes for juveniles or children as may be required.

(2)

The shelter homes referred in sub-section (1) shall function as drop-in-centres for the children in the need of urgent support who have been brought to such homes through such persons as are referred to in sub-section (1) of section 32.

(3)

As far as possible, the shelter homes shall have such facilities as may be prescribed by the rules.

38.

Transfer

(1)

If during the inquiry it is found that the child hails from the place outside the jurisdiction of the Committee, the Committee shall order the transfer of the child to the competent authority having jurisdiction over the place of residence of the child.

(2)

Such juvenile or the child shall be escorted by the staff of the home in which he is lodged originally.

(3)

The State Government may make rules to provide for the travelling allowance to be paid to the child.

39.

Restoration

(1)

Restoration of and protection to a child shall be the prime objective of any children's home or the shelter home.

(2)

The children's home or a shelter home, as the case may be, shall take such steps as are considered necessary for the restoration of and protection to a child deprived of this family environment temporarily or permanently where such child is under the care and protection of a children's home or a shelter home, as the case may be.

(3)

The Committee shall have the powers to restore any child in need of care and protection to his parent, guardian, fit person or fit institution, as the case may be, and give them suitable directions.

[Explanation. For the purposes of this section restoration of and protection of a child means restoration to

(a)

parents;

(b)

adopted parents;

(c)

foster parents;

(d)

guardian;

(e)

fit person;

(f)

fit institution.]

Chapter IV

Rehabilitation And Social Reintegration

[Explanation substituted by Act 33 of 2006, Section 20, (w.e.f. 22.8.2006).]

Prior to its substitution, the Explanation read as under:-Explanation.- For the purpose of this section restoration of child, means restoration to-

(a) parents;

(b) adopted parents;

(c) foster parents.

40.

Process of rehabilitation and social reintegration

The rehabilitation and social reintegration of a child shall begin during the stay of the child in a children's home or special home and the rehabilitation and social reintegration of children shall be carried out alternatively by (i) adoption, (ii) foster care, (iii) sponsorship, and (iv) sending the child to an after-care organisation.

41.

Adoption

(1)

The primary responsibility for providing care and protection to children shall be that of his family.

(2)

[Adoption shall be resorted to for the rehabilitation of the children who are orphan, abandoned or surrendered through such mechanism as may be prescribed.

(3)

In keeping with the provisions of the various guidelines for adoption issued from time to time, by the State Government, or the Central Adoption Resource Agency and notified by the Central Government, children may be given in adoption by a Court after satisfying itself regarding the investigations having been carried out, as are required for giving such children in adoption.

(4)

The State Government shall recognise one or more of its institutions or voluntary organisations in each district as specialised adoption agencies in such manner as may be prescribed for the placement of orphan, abandoned or surrendered children for adoption in accordance with the guidelines notified under sub-section (3):

Provided that the children's homes and the institutions run by the State Government or a voluntary organisation for children in need of care and protection, who are orphan, abandoned or surrendered, shall ensure that these children are declared free for adoption by the Committee and all such cases shall be referred to the adoption agency in that district for placement of such children in adoption in accordance with the guidelines notified under sub-section (3).]

[Sub-Sections (2), (3) and (4) substituted by Act 33 of 2006, Section 21, (w.e.f. 22-8-2006).]

(5)

No child shall be offered for adoption

(a)

until two members of the Committee declare the child legally free for placement in the case of abandoned children,

(b)

till the two months period for reconsideration by the parent is over in the case of surrendered children, and

(c)

without his consent in the case of a child who can understand and express his consent.

(6)

[The Court may allow a child to be given in adoption

(a)

to a person irrespective of marital status; or

(b)

to parents to adopt a child of same sex irrespective of the number of living biological sons or daughters; or

(c)

to childless couples.]

[Substituted by Act 33 of 2006, Section 21 (ii) (w.e.f 22-8-2006).]

Prior to their substitution, Sub-sections (2), (3) and (4) read as under:-

"(2) Adoption shall be resorted to for the rehabilitation of such children as are orphaned, abandoned, neglected and abused through institutional and non-institutional methods.

(3) In Keeping with the provisions of the various guidelines for adoption issued from time to time by the State Government, the Board shall be empowered to give children in adoption and carry out such investigations as are required for giving children in adoption in accordance with the guidelines issued by the State Government from time to time in this regard.

(4) The children's homes or the State Government run institutions for orphans shall be recognized as an adopting agencies both for scrutiny and placement of such children for adoption in accordance with the guidelines issued under sub-section (3)."

Prior to its substitution, sub-section (6) read as under:-

"(6) The Board may allow a child to be given in adoption-

(a) to a single parent, and

(b) to parents to adopt a child of same sex irrespective of the number of living biological sons or daughters."

42.

Foster care

(1)

The foster care may be used for temporary placement of those infants who are ultimately to be given for adoption.

(2)

In foster care, the child may be placed in another family for a short or extended period of time, depending upon the circumstances where the child's own parent usually visit regularly and eventually after the rehabilitation, where the children may return to their own homes.

(3)

The State Government may make rules for the purposes of carrying out the scheme of foster care programme of children.

43.

Sponsorship

(1)

The sponsorship programme may provide supplementary support to families, to children's homes and to special homes to meet medical, nutritional, educational and other needs of the children with a view to improving their quality of life.

(2)

The State Government may make rules for the purposes of carrying out various schemes of sponsorship of children, such as individual to individual sponsorship, group sponsorship or community sponsorship.

44.

After-care organisation

.The State Government may, by rules made under this Act, provide

(a)

for the establishment or recognition of after-care organisations and the functions that may be performed by them under this Act;

(b)

for a scheme of after-care programme to be followed by such after-care organisations for the purpose of taking care of juveniles or the children after they leave special homes, children homes and for the purpose of enabling them to lead an honest, industrious and useful life;

(c)

for the preparation or submission of a report by the probation officer or any other officer appointed by that Government in respect of each juvenile or the child prior to his discharge from a special home, children's home, regarding the necessity and nature of after-care of such juvenile or of a child, the period of such after-care, supervision thereof and for the submission of report by the probation officer or any other officer appointed for the purpose, on the progress of each juvenile or the child;

(d)

for the standards and the nature of services to be maintained by such after-care organisations;

(e)

for such other matters as may be necessary for the purpose of carrying out the scheme of after-care programme for the juvenile or the child:

Provided that any rule made under this section shall not provide for such juvenile or child to stay in the after-care organisation for more than three years:

Provided further that a juvenile or child over seventeen years of age but less than eighteen years of age would stay in the after-care organisation till he attains the age of twenty years.

45.

Linkages and co-ordination

.The State Government may make rules to ensure effective linkages between various governmental, non-governmental, corporate and other community agencies for facilitating the rehabilitation and social reintegration of the child.

Chapter V

Miscellaneous

46.

Attendance of parent or guardian of juvenile or child

.Any competent authority before which a juvenile or the child is brought under any of the provisions of this Act, may, whenever it so thinks fit, require any parent or guardian having the actual charge of or control over the juvenile or the child to be present at any proceeding in respect of the juvenile or the child.

47.

Dispensing with attendance of juvenile or child

.If, at any stage during the course of an inquiry, a competent authority is satisfied that the attendance of the juvenile or the child is not essential for the purpose of inquiry, the competent authority may dispense with his attendance and proceed with the inquiry in the absence of the juvenile or the child.

48.

Committal to approved place of juvenile or child suffering from dangerous diseases and his future disposal

(1)

When a juvenile or the child who has been brought before a competent authority under this Act, is found to be suffering from a disease requiring prolonged medical treatment or physical or mental complaint that will respond to treatment, the competent authority may send the juvenile or the child to any place recognised to be an approved place in accordance with the rules made under this Act for such period as it may think necessary for the required treatment.

(2)

□

[Sub-Section (2) Omitted by Act 12 of 2011, Section 2.]

Omitted Sub section (2) read as:

(2) Where a juvenile or the child is found to be suffering from leprosy, sexually transmitted disease, Hepatitis-B, open cases of Tuberculosis and such other diseases or is of unsound mind, he shall be dealt with separately through various specialised referral services or under the relevant laws as such.

49.

Presumption and determination of age

(1)

Where it appears to a competent authority that person brought before it under any of the provisions of this Act (otherwise than for the purpose of giving evidence)

is a juvenile or the child, the competent authority shall make due inquiry so as to the age of that person and for that purpose shall take such evidence as may be necessary (but not an affidavit) and shall record a finding whether the person is a juvenile or the child or not, stating his age as nearly as may be.

(2)

No order of a competent authority shall be deemed to have become invalid merely by any subsequent proof that the person in respect of whom the order has been made is not a juvenile or the child, and the age recorded by the competent authority to be the age of person so brought before it, shall for the purpose of this Act, be deemed to be the true age of that person.

50.

Sending a juvenile or child outside jurisdiction

.In the case of a juvenile or the child, whose ordinary place of residence lies outside the jurisdiction of the competent authority before which he is brought, the competent authority may, if satisfied after due inquiry that it is expedient so to do, send the juvenile or the child back to a relative or other person who is fit and willing to receive him at his ordinary place of residence and exercise proper care and control over him, notwithstanding that such place of residence is outside the jurisdiction of the competent authority; and the competent authority exercising jurisdiction over the place to which the juvenile or the child is sent shall in respect of any matter arising subsequently have the same powers in relation to the juvenile or the child as if the original order had been passed by itself.

51.

Reports to be treated as confidential

.The report of the probation officer or social worker considered by the competent authority shall be treated as confidential:

Provided that the competent authority may, if it so thinks fit, communicate the substance thereof to the juvenile or the child or his parent or guardian and may give such juvenile or the child, parent or guardian an opportunity of producing such evidence as may be relevant to the matter stated in the report.

52.

Appeals

(1)

Subject to the provisions of this section, any person aggrieved by an order made by a competent authority under this Act may, within thirty days from the date of such order, prefer an appeal to the Court of Session:

Provided that the Court of Session may entertain the appeal after the expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2)

No appeal shall lie from

(a)

any order of acquittal made by the Board in respect of a juvenile alleged to have committed an offence; or

(b)

any order made by a Committee in respect of a finding that a person is not a neglected juvenile.

(3)

No second appeal shall lie from any order of the Court of Session passed in appeal under this section.

53.

Revision

.The High Court may, at any time, either of its own motion or on an application received in this behalf, call for the record of any proceeding in which any competent authority or Court of Session has passed an order for the purpose of satisfying itself as to the legality or propriety of any such order and may pass such order in relation thereto as it thinks fit:

Provided that the High Court shall not pass an order under this section prejudicial to any person without giving him a reasonable opportunity of being heard.

54.

Procedure in inquiries, appeals and revision proceedings

(1)

Save as otherwise expressly provided by this Act, a competent authority while holding any inquiry under any of the provisions of this Act, shall follow such procedure as may be prescribed and subject thereto, shall follow, as far as may be, the procedure laid down in the Code of Criminal Procedure, 1973 (2 of 1974) for trials in summons cases.

(2)

Save as otherwise expressly provided by or under this Act, the procedure to be followed in hearing appeals or revision proceedings under this Act shall be, as far as practicable, in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974).

55.

Power to amend orders

(1)

Without prejudice to the provisions for appeal and revision under this Act, any competent authority may, on an application received in this behalf, amend any order as to the institution to which a juvenile or the child is to be sent or as to the person under whose care or supervision a juvenile or the child is to be placed under this Act:

Provided that there shall be at least two members and the parties or its defence present during the course of hearing for passing an amendment in relation to any of its order.

(2)

Clerical mistakes in orders passed by a competent authority or errors arising therein from any accidental slip or omission may, at any time, be corrected by the competent authority either on its own motion or on an application received in this behalf.

56.

Power of competent authority to discharge and transfer juvenile or child

.The competent authority [* * *]

[The words " or the local authority" omitted by Act 33 of 2006, Section 5 (w.e.f. 22.8.2006).]

may, notwithstanding anything contained in this Act, at any time, order a child in need of care and protection or a juvenile in conflict with law to be discharged or transferred from one children's home or special home to another, as the case may be, keeping in view the best interest of the child or the juvenile, and his natural place of stay, either absolutely or on such conditions as it may think fit to impose:

Provided that the total period of stay of the juvenile or the child in a children's home or a special home or a fit institution or under a fit person shall not be increased by such transfer.

57.

[Transfer between children's homes under the Act, and juvenile homes of like nature in different parts of India
[Substituted by Act 33 of 2006, Section 22, for Section 57 (w.e.f. 22-8-2006).]

.The State Government may direct any child or the juvenile to be transferred from any children's home or special home within the State to any other children's home, special home or institution of a like nature or to such institutions outside the State in consultation with the concerned State Government and with the prior intimation to the Committee or the Board, as the case may be, and such order shall be deemed to be operative for the competent authority of the area to which the child or the juvenile is sent.]

Prior to its substitution, Section 57 read as under:-

57. Transfer between children's homes, under the Act, and juvenile homes, of like nature in different parts of India.-The State Government or the local authority may direct any child or the juvenile to be transferred from any children's home or special home outside the State to any other children's home, special home or institution of like nature with the prior intimation to the local Committee or the Board, as the case may be, and such order shall be deemed to be operative for the competent authority of the area to which the child or the juvenile is sent."

58.

[Transfer of juvenile or child as are mentally ill or addicted to alcohol or other drugs.

[Substituted by Act No. 12 of 2011.]

(1)

Where it appears to the competent authority that any juvenile or child kept in a special home or an observation home or a children's home or a shelter home or in an institution in pursuance of this Act, is a mentally ill person or addicted to alcohol or other drugs which lead to behavioural changes in a person, the competent authority may order his removal to a psychiatric hospital or psychiatric nursing home in accordance with the provisions of the Mental Health Act, 1987 or the rules made thereunder.

(2)

In case the juvenile or child had been removed to a psychiatric hospital or psychiatric nursing home under sub-section (1), the competent authority may, on the basis of the advice given in the certificate of discharge of the psychiatric hospital or psychiatric nursing home, order to remove such juvenile or child to an Integrated Rehabilitation Centre for Addicts or similar centres maintained by the State Government for mentally ill persons (including the persons addicted to any narcotic drug or psychotropic substance) and such removal shall be only for the period required for the in-patient treatment of such juvenile or child.

Explanation. - For the purposes of this sub-section,-

(a)

"Integrated Rehabilitation Centre for Addicts" shall have the meaning assigned to it under the scheme called "Central Sector Scheme of Assistance for Prevention of Alcoholism and Substance (Dmgs) Abuse and for Social Defence Services" made by the Government of India in the Ministry of Social Justice and Empowerment or any other corresponding scheme for the time being in force;

(b)

"mentally ill person" shall have the meaning assigned to it in clause (l) of section 2 of the Mental Health Act, 1987; 14 of 1987.

(c)

"psychiatric hospital" or "psychiatric nursing home" shall have the meaning assigned to it in clause (q) of section 2 of the Mental Health Act, 1987.]

58. Transfer of juvenile or child of unsound mind or suffering from leprosy or addicted to drugs.Where it appears to the competent authority that any juvenile or the child kept in a special home or a children's home or shelter home or in an institution in pursuance of this Act, is suffering from leprosy or is of unsound mind or is addicted to any narcotic drug or psychotropic substance, the competent authority may order his removal to a leper asylum or mental hospital or treatment centre for drug addicts or to a place of safety for being kept there for such period not exceeding the period for which he is required to be kept under the order of the competent authority or for such further periods as may be certified by the medical officer necessary for the proper treatment of the juvenile or the child.

59.

Release and absence of juvenile or child on placement

(1)

When a juvenile or the child is kept in a children's home or special home and on a report of a probation officer or social worker or of Government or a voluntary organisation, as the case may be, the competent authority may consider, the release of such juvenile or the child permitting him to live with his parent or guardian or under the supervision of any authorised person named in the order, willing to receive and take charge of the juvenile or the child to educate and train him for some useful trade or calling or to look after him for rehabilitation.

(2)

The competent authority may also permit leave of absence to any juvenile or the child, to allow him, on special occasions like examination, marriage of relatives, death of kith and kin or the accident or serious illness of parent or any emergency of like nature, to go on leave under supervision, [for a period generally not exceeding seven days]

[Substituted by Act 33 of 2006, Section 23, for " for maximum seven days " (w.e.f. 22.8.2006).]

, excluding the time taken in journey.

(3)

Where a permission has been revoked or forfeited and the juvenile or the child refuses or fails to return to the home concerned or juvenile to which he was directed so to return, the Board may, if necessary, cause him to be taken charge of and to be taken back to the concerned home.

(4)

The time during which a juvenile or the child is absent from a concerned home in pursuance of such permission granted under this section shall be deemed to be part of the time for which he is liable to be kept in the special home:

Provided that when a juvenile has failed to return to the special home on the permission being revoked or forfeited, the time which elapses after his failure so to return shall be excluded in computing the time during which he is liable to be kept in the institution.

60.

Contribution by parents

(1)

The competent authority which makes an order for sending a juvenile or the child to a children's home or to a special home or placing the juvenile under the care of a fit person or fit institution may make an order requiring the parent or other person liable to maintain the juvenile or the child to contribute to his maintenance, if able to do so, in the prescribed manner according to the income.

(2)

The competent authority may direct, if necessary, the payment to be made to poor parent or guardian by the Superintendent or the Project Manager of the home to pay such expenses for the journey of the inmate or parent or guardian or both, from the home to his ordinary place of residence at the time of sending the juvenile as may be prescribed.

61.

Fund

(1)

The State Government [*

* *]

[The words " or local authority" omitted by Act 33 of 2006, Section 5 (w.e.f. 22.8.2006).]

may create a Fund under such name as it thinks fit for the welfare and rehabilitation of the juvenile or the child dealt with under this Act.

(2)

There shall be credited to the Fund such voluntary donations, contributions or subscriptions as may be made by any individual or organisation.

(3)

The Fund created under sub-section (1) shall be administered by the State advisory board in such manner and for such purposes as may be prescribed.

62.

Central, State, district and city advisory boards.

(1)

The Central Government or a State Government may constitute a Central or a State advisory board, as the case may be, to advise that Government on matter relating to the establishment and maintenance of the homes, mobilisation of resources, provision of facilities for education, training and rehabilitation of child in need of care and protection and juvenile in conflict with law and co-ordination among the various official and non-official agencies concerned.

(2)

The Central or State advisory board shall consist of such persons as the Central Government or the State Government, as the case may be, may think fit and shall include eminent social workers, representatives of voluntary organisation in the field of child welfare corporate sector, academicians, medical professional and the concerned Department of the State Government.

(3)

The district or city level inspection committee constituted under section 35 of this Act shall also functions as the district or city advisory boards.

62A.

[Constitution of Child Protection Unit responsible for implementation of the Act

[Inserted by Act 33 of 2006, Section 24 (w.e.f. 22.8.2006).]

.Every State Government shall constitute a Child Protection Units for the State and, such Units for every District, consisting of such officers and other employees as may be appointed by that Government, to take up matters relating to children in need of care and protection and juveniles in conflict with law with a view to ensure the implementation of this Act including the establishment and maintenance of homes, notification of competent authorities in relation to these children and their rehabilitation and co-ordination with various official and non-official agencies concerned.]

63.

Special juvenile police unit

(1)

In order to enable the police officers who frequently or exclusively deal with juveniles or are primarily engaged in the prevention of juvenile crime or handling of the juveniles or children under this Act to perform their functions more effectively, they shall be specially instructed and trained.

(2)

In every police station at least one officer with aptitude and appropriate training and orientation may be designated as the juvenile or the child welfare officer who will handle the juvenile or the child in co-ordination with the police.

(3)

Special juvenile police unit, of which all police officers designated as above, to handle juveniles or children will be members, may be created in every district and city to co-ordinate and to upgrade the police treatment of the juveniles and the children.

64.

Juvenile in conflict with law undergoing sentence at commencement of this Act

.In any area in which this Act is brought into force, the State Government [* * *]

[The words " or the local authority" omitted by Act 33 of 2006, Section 5 (w.e.f. 22.8.2006).]

[shall direct]

[Substituted by Act 33 of 2006, Section 25, for " may direct" (w.e.f. 22.8.2006).]

that a juvenile in conflict with law who is undergoing any sentence of imprisonment at the commencement of this Act, shall, in lieu of undergoing such sentence, be sent to a special home or be kept in fit institution in such manner as the State Government [* * *]

[The words " or the local authority" omitted by Act 33 of 2006, Section 5 (w.e.f. 22.8.2006).]

thinks fit for the remainder of the period of the sentence;

and the provisions of this Act shall apply to the juvenile as if he had been ordered by the Board to be sent to such special home or institution or, as the case may be, ordered to be kept under protective care under sub-section (2) of section 16 of this Act.

[Provided that the State Government, or as the case may be the Board, may, for any adequate and special reason to be recorded in writing, review the case of a juvenile in conflict with law undergoing a sentence of imprisonment, who has ceased to be so on or before the commencement of this Act, and pass appropriate order in the interest of such juvenile.

Explanation. In all cases where a juvenile in conflict with law is undergoing a sentence of imprisonment at any stage on

the date of commencement of this Act, his case including the issue of juvenility, shall be deemed to be decided in terms of clause (l) of section 2 and other provisions contained in this Act and the rules made thereunder, irrespective of the fact that he ceases to be a juvenile on or before such date and accordingly he shall be sent to the special home or a fit institution, as the case may be, for the remainder of the period of the sentence but such sentence shall not in any case exceed the maximum period provided in section 15 of this Act.]

[Inserted by Act 33 of 2006, Section 25 (w.e.f. 22.8.2006).]

65.

Procedure in respect of bonds

.Provisions of Chapter 33 of the Code of Criminal Procedure, 1973 (2 of 1974) shall, as far as may be, apply to bonds taken under this Act.

66.

Delegation of powers

.The State Government may, by the general order, direct that any power exercisable by it under this Act shall, in such circumstances and under such conditions, if any, as may be prescribed in the order, be exercisable also by an officer subordinate to that Government [* * *]

[The words " or the local authority" omitted by Act 55 of 2006, Section 5 (w.e.f. 22.8.2006).]

.

67.

Protection of action taken in good faith

.No suit or legal proceedings shall lie against the State Government or voluntary organisation running the home or any officer and the staff appointed in pursuance of this Act in respect of anything which is in good faith done or intended to be done in pursuance of this Act or of any rules or order made thereunder.

68.

Power to make rules

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act:

[Provided that the Central Government may, frame model rules in respect of all or any of the matters with respect to which the State Government may make rules under this section, and where any such model rules have been framed in respect of any such matter, they shall apply to the State until the rules in respect of that matter is made by the State Government and while making any such rules, so far as is practicable, they conform to such model rules.]

[Inserted by Act 33 of 2006, Section 26 (w.e.f. 22.8.2006).]

(2)

In particular, and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:

(i)

the term of office of the members of the Board and the manner in which such member may resign under sub-section (4) of section 4;

(ii)

the time of the meetings of the Board and the rules of procedure in regard to the transaction of business at its meeting under sub-section (1) of section 5;

(iii)

the management of observation homes including the standards and various types of services to be provided by them and the circumstances in which and the manner in which, the certification of the observation home may be granted or withdrawn and such other matters as are referred to in section 8;

(iv)

the management of special homes including the standards and various types of services to be provided by them and the circumstances in which and the manner in which, the certification of the special home may be granted or withdrawn and such other matters as are referred to in section 9;

(v)

persons by whom any juvenile in conflict with law may be produced before the Board and the manner of sending such juvenile, to an observation home under sub-section (2) of section 10;

(vi)

matters relating to removal of disqualification attaching to conviction of a juvenile under section 19;

(vii)

the qualifications of the Chairperson and members, and the tenure for which they may be appointed under sub-section (3) of section 29;

(viii)

the time of the meetings of the Committee and the rules of procedure in regard to the transaction of business at its meeting under sub-section (1) of section 30;

(ix)

the manner of making the report to the police and to the Committee and the manner of sending and entrusting the child to children's home pending the inquiry under sub-section (2) of section 32;

(x)

the management of children's homes including the standards and nature of services to be provided by them, and the manner in which certification of a children's home or recognition to a voluntary organisation may be granted or withdrawn under sub-section (2) [and the manner of registration of institutions under sub-section (3)]

[Inserted by Act 33 of 2006, Section 26 (w.e.f. 22.8.2006).]

of section 34;

(xi)

appointment of inspection committees for children's homes, their tenure and purposes for which inspection committees may be appointed and such other matters as are referred to in section 35;

(xii)

facilities to be provided by the shelter homes under sub-section (3) of section 37;

[(xii-a) rehabilitation mechanism to be resorted to in adoption under sub-section (2), notification of guidelines under sub-section (3) and the manner of recognition of specialised adoption agencies under sub-section (4) of section 41;]

[Inserted by Act 33 of 2006, Section 26 (w.e.f. 22.8.2006).]

(xiii)

for carrying out the scheme of foster care programme of children under sub-section (3) of section 42;

(xiv)

for carrying out various schemes of sponsorship of children under sub-section (2)

of section 43;

(xv)

matters relating to after-care organisation under section 44;

(xvi)

for ensuring effective linkages between various agencies for facilitating rehabilitation and social integration of the child under section 45;

(xvii)

the purposes and the manner in which the Fund shall be administered under sub-section (3) of section 61;

(xviii)

any other matter which is required to be, or may be, prescribed.

(3)

[Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

[Inserted by Act 33 of 2006, Section 26 (w.e.f. 22.8.2006).]

(4)

□

[Sub-Section (3) renumbered as sub-Section (4) by Act 33 of 2006, Section 26 (w.e.f. 22.8.2006).]

Every rule made by a State Government under this Act shall be laid, as soon as may be after it is made, before the Legislature of that State.

69.

Repeal and savings

(1)

The Juvenile Justice Act, 1986 (

53 of 1986

) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Act shall be deemed to have been done or taken under the corresponding provisions of this Act.

70.

Power to remove difficulties

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order, not inconsistent with the provisions of this Act, remove the difficulty:

Provided that no such order shall be made after the expiry of the period of two years from the commencement of this Act.

(2)

However, order made under the section shall be laid, as soon as may be after it is made, before each House of Parliament.

Related AI tags, queries and research notes

Translation